

A win for the environment

Environment clearances are **guardrails** that ensure developmental projects do not injure **ecosystems**, wildlife and natural resources and harm people's health. One of the defining elements of the Environmental Impact Assessment (EIA) Rules of 2006, these **screenings** were meant to enable policymakers to **strike the right balance** between the **imperatives** of development and **sustainability**. The precautionary **principle** behind this provision **has**, however, been substantially **undermined** in the past eight years. In 2017, the Ministry of Environment, Forest and Climate Change issued a notification that allowed developers to obtain an environmental clearance after beginning work on a project. The notification provided a one-time window to defaulters to **comply with** due procedure. However, in the process, it inaugurated a **regime** of **post-facto** clearances, which was consolidated in 2021 when the Centre issued an Office Memorandum (OM) to "identify" and "handle" violation cases. Now, the Supreme Court has **called out** the government for "**going out of its way...** to protect those who harm the environment". On May 16, a two-judge-bench **struck down** the 2017 notification and the 2021 OM.

The **verdict** is not the first time that the SC has **admonished** the Centre for **diluting** the EIA. In Common Cause vs Union of India (2017), a two-judge-bench ruled that the government had committed "serious **lapses**" in allowing **large-scale** mining to be "carried on without forest and environmental clearances". Such "violations of laws and policy need to be prevented," it **underlined**. Three years later, in Alembic Pharmaceuticals vs Rohit Prajapati, the Court **held** that post-facto clearances go against the "fundamental principles of environmental **jurisprudence**", and that they were an "**anathema** to the EIA notification". Then, in January last year, the SC stayed the 2021 OM. However, as an analysis by this newspaper in February revealed, the regulatory **laxity precipitated** by the 2017 notification allowed more than 50 defaulting projects to go unpunished — coal, iron and bauxite mines, steel and iron factories, cement plants and limestone **quarries** were approved without proper **scrutiny** of their impacts on people's health and ecology.

The weakening of the EIA goes against the SC's environmental jurisprudence, where it has continuously expanded the scope of Article 21 to include the right to a healthy environment. In its latest verdict, too, the Court has **drawn attention** to urban India's pollution crisis and **reaffirmed** the links between regulatory **diligence** and the Right to Life. The **problem**, however, **is** that governments **tend to** view **sustainability** and development as **binaries** — their ease-of-doing-business drives very often **pay short shrift** to the imperatives of environmental protection. The Court has rightly questioned the tendency to see industry and ecology as locked in a **zero-sum game**. Its **words** — "conservation of the environment and its improvement is an essential part of the concept of development" — **must resonate** among policymakers and inform regulatory processes. **[Practice Exercise]**

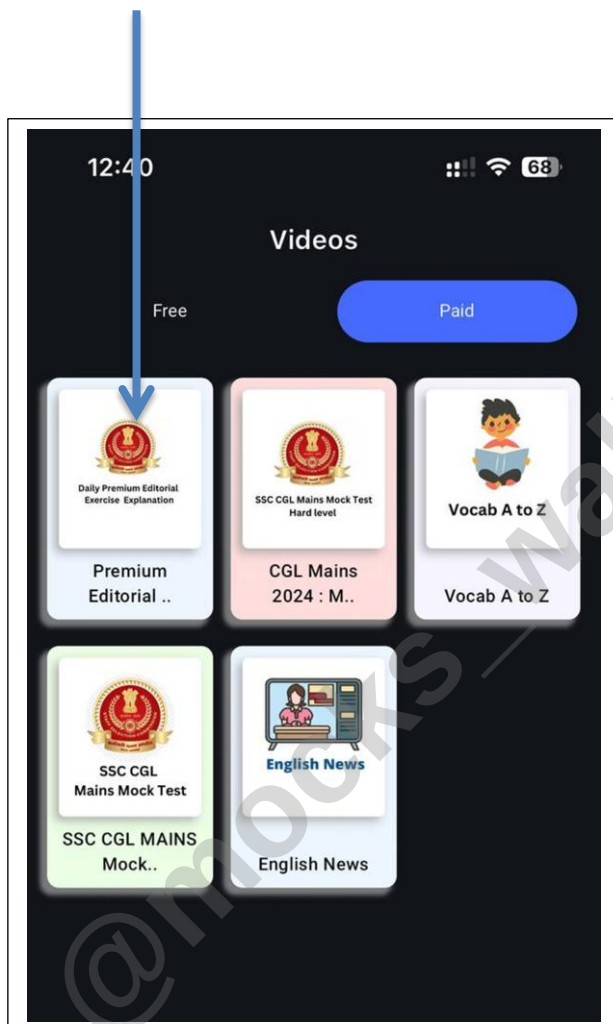
- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'.

Vocabulary

1. **Guardrail** (noun) – safeguard, protection, boundary, guideline, barrier सुरक्षात्मक उपाय
2. **Ecosystem** (noun) – environment, habitat, biosphere, ecological system, natural system पारिस्थितिकी तंत्र
3. **Screening** (noun) – evaluation, assessment, examination, review, inspection परीक्षण
4. **Strike the right balance** (phrase) – find a middle ground, harmonize, reconcile, calibrate, align उचित संतुलन बनाना
5. **Imperative** (noun) – necessity, obligation, priority, requirement, urgency अत्यावश्यकता
6. **Sustainability** (noun) – viability, renewability, durability, endurance, stability स्थिरता
7. **Undermine** (verb) – weaken, erode, sabotage, damage, impair कमजोर करना
8. **Comply** (with) (verb) – follow, obey, conform, adhere, observe पालन करना
9. **Regime** (noun) – system, arrangement, administration, structure, order व्यवस्था
10. **Post-facto** (adjective) – retrospective, after the fact, belated, delayed, subsequent बाद में किया गया
11. **Call out** (phrasal verb) – criticize, denounce, expose, condemn, highlight आलोचना करना
12. **Go out of its way** (phrase) – make special effort, act deliberately, go beyond usual, overextend, exceed effort अतिरिक्त प्रयास करना
13. **Strike down** (phrasal verb) – nullify, invalidate, abolish, annul, overturn अमान्य कर देना
14. **Verdict** (noun) – judgment, ruling, decision, decree, resolution निर्णय / फैसला
15. **Admonish** (verb) – reprimand, scold, warn, rebuke, criticize डाँटना / चेतावनी देना
16. **Dilute** (verb) – weaken, lessen, diminish, reduce, water down कमजोर करना
17. **Lapse** (noun) – failure, omission, negligence, slip, error चूक / गलती
18. **Large-scale** (adjective) – extensive, widespread, massive, broad, expansive बड़े पैमाने पर
19. **Underline** (verb) – emphasize, highlight, stress, accentuate, reinforce ज़ोर देना
20. **Hold** (verb) – state, declare, maintain, assert, rule निर्णय देना

21. **Jurisprudence** (noun) – legal theory, legal philosophy, body of law, case law, judicial principles न्यायशास्त्र
22. **Anathema** (noun) – curse, abomination, outrage, repulsion, hated concept घोर आपत्ति / अभिशाप
23. **Laxity** (noun) – carelessness, negligence, slackness, leniency, inattentiveness लापरवाही
24. **Precipitate** (verb) – bring about, provoke, trigger, spark, cause कारण बनना
25. **Quarry** (noun) – mine, excavation site, pit, open-pit mine, extraction site खदान
26. **Scrutiny** (noun) – inspection, examination, analysis, review, investigation जांच
27. **Draw attention** (phrase) – highlight, emphasize, bring focus to, underscore, point out ध्यान आकर्षित करना
28. **Reaffirm** (verb) – confirm again, reiterate, emphasize, validate, assert पुनः पुष्टि करना
29. **Diligence** (noun) – carefulness, attentiveness, conscientiousness, thoroughness, effort परिश्रम / सावधानी
30. **Tend** (to) (verb) – be inclined to, usually, be likely to, habitually do, show tendency झुकाव रखना
31. **Sustainability** (noun) – (Repeated, same as 6) – viability, renewability, endurance, resilience, stability स्थिरता
32. **Binary** (noun) – duality, dichotomy, twofold division, either-or, contrast दो में विभाजन
33. **Pay short shrift** (phrase) – neglect, ignore, dismiss quickly, give little attention, disregard अनदेखा करना
34. **Zero-sum game** (noun) – win-lose situation, competitive scenario, fixed outcome, rivalry, all-or-nothing जहाँ एक की जीत दूसरे की हार है
35. **Resonate** (verb) – echo, reverberate, strike a chord, connect, ring true गूँजना

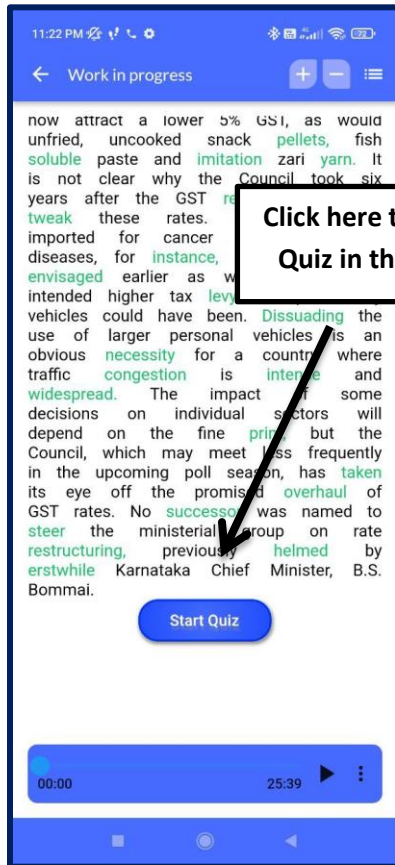
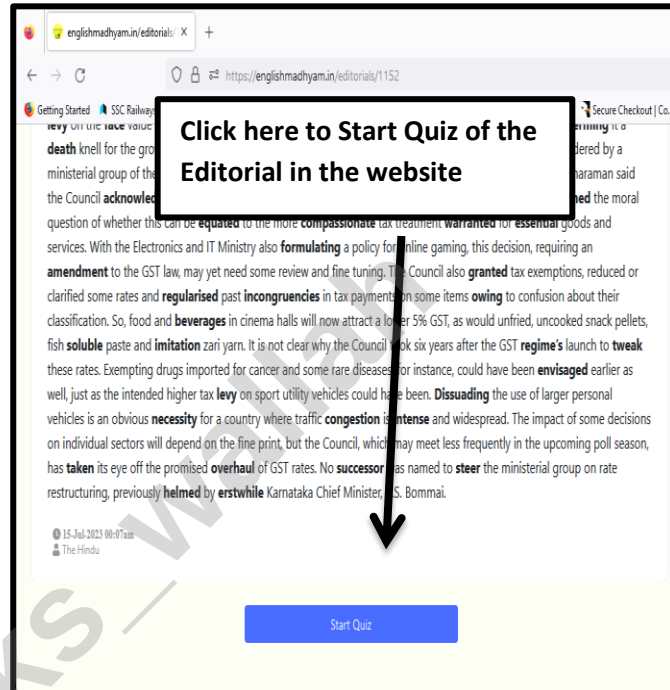
Video solution of Practice Exercise from this Editorial is exclusively available on App.



Summary of the Editorial

1. **Environmental clearances** are crucial safeguards to prevent development projects from damaging ecosystems, wildlife, and human health.
2. The **Environmental Impact Assessment (EIA) Rules of 2006** aim to balance development needs with environmental sustainability.
3. Since 2017, this balance has been undermined through **post-facto environmental clearances**, allowing developers to start projects before obtaining permission.
4. A **2017 notification** by the Ministry of Environment introduced a one-time window for defaulters, legitimizing such violations.
5. In **2021**, this approach was further institutionalized via an **Office Memorandum (OM)** to handle environmental violations.
6. On **May 16, 2025**, the **Supreme Court struck down both the 2017 notification and the 2021 OM**, criticizing the government for protecting violators.
7. The Court's decision reinforces past judgments criticizing the dilution of environmental oversight.
8. In **Common Cause vs Union of India (2017)**, the SC condemned large-scale mining without due clearances.
9. In **Alembic Pharmaceuticals vs Rohit Prajapati (2020)**, the Court ruled that post-facto approvals violate core environmental principles.
10. Despite the **January 2024 stay** on the 2021 OM, over 50 polluting projects — including mines and factories — were approved without scrutiny.
11. This **regulatory laxity** has harmed both **ecology and public health**, bypassing accountability.
12. The weakening of EIA violates **Article 21**, which guarantees the **Right to a Healthy Environment**.
13. The SC emphasized that **pollution in urban India** is a serious issue tied directly to lax regulation.
14. The editorial criticizes the government for treating **development and sustainability** as opposing goals.
15. The Court rightly asserts that **environmental protection is integral to development**, a principle that must guide future policymaking.

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